

Even assuming arguingo FUSD did meet its preliminary burden of establishing that it adequately hired, supervised, and retained Parayno, plaintiff's Additional Material Facts Nos.15 and 18 prevent the court from entering judgment in FUSD's favor on the third cause of action. These AMFs establish FUSD's administration issued several "write-ups" to Parayno for using inappropriate language in the classroom, for taking students off campus on field trips without written permission, and for Parayno repeatedly being alone in a classroom with a student after school. As such, it cannot be said that the questions as to whether FUSD acted reasonably with regard to Parayno and/or whether the harm to plaintiff was foreseeable should be resolved as a matter of law. (*Lawndale, supra*, 72 Cal.App.5th at p. 126.)

Accordingly, FUSD's motion for summary judgment and/or adjudication is denied.

Tentative Ruling

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Tentative Ruling

Re: **Mohammed Shareek v. Rigo Hernandez**
Superior Court Case No. 25CECG00645

Hearing Date: September 15, 2026 (Dept. 501)

Motion: By Defendants for an Order to Compel Plaintiffs' Initial Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and to Deem Requests for Admission Admitted; Request for Monetary Sanctions

Tentative Ruling:

To grant defendants Rigo Hernandez and Trust RH Construction's motion to compel plaintiffs Mohammed Shareek, Pirsila Tubuna, Rayan Isaac Mohammed, Ayman Moses Mohammed, and Ayan Daniel Mohammed to provide verified responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300.) Plaintiffs are ordered to serve complete verified responses to the discovery set forth above, without objections, within 10 days of the clerk's service of the minute order.

To grant defendants' motion to deem requests for admissions admitted by plaintiffs. The truth of the matters specified in the Request for Admissions, Set One, are to be deemed admitted **unless** plaintiffs serve, **before** the hearing, proposed responses to the requests for admission that are in substantial compliance with Code of Civil Procedure section 2033.220.

To impose monetary sanctions in favor of defendants and against plaintiffs. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c), 2033.280, subd. (c), 2023.010, subd. (d).) Plaintiff is ordered to pay \$1,200.00 in sanctions to Pascuzzi, Pascuzzi & Stoker, LLP, within 30 days of the clerk's service of the minute order.

Explanation:

Where a party fails to serve a timely response to interrogatories or request for production of documents, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) In the case of requests for admission, the propounding party may move for an order that the truth of any matters specified in the requests be deemed admitted. (*Id.*, § 2033.280, subd. (b).)

A party that fails to serve a timely response to interrogatories or an inspection demand waives "any objection" to the request. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Where a party fails to timely respond to a propounding party's request for admissions, objections are waived and the court must grant the propounding party's motion requesting that matters be deemed admitted, unless it finds that the party to

whom the requests were directed has served, prior to the hearing on the motion, a proposed response that is substantially in compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc. § 2033.280; see also *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 778 ("*St. Mary*").) "Substantial compliance" means compliance with respect to "every reasonable objective of the statute." (*Id.* at p. 779, internal quotation marks and citations omitted.) The responding party can move the court for relief from waiving objections by (1) serving responses in substantial compliance and (2) demonstrating that the failure to serve responses was the result of mistake, inadvertence or excusable neglect. (Code Civ. Proc., § 2033.280, subd. (a)(1) and (2).) By simply serving substantive responses to the requests for admission prior to the hearing date for this motion the court must deny the motion. (Code Civ. Proc., § 2033.280(c); see also *St. Mary, supra*, 223 Cal.App.4th at 776.)

In the case at bench, on July 10, 2026, Defendants Rigo Hernandez and Trust RH Construction, (collectively "Defendants") served Form Interrogatories, Set One, Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Request for Admission, Set One, on plaintiffs Mohammed Shareek, Pirsila Tubuna, Rayan Isaac Mohammed, Ayman Moses Mohammed, and Ayan Daniel Mohammed (collectively "Plaintiffs"). The parties agreed to extend the deadline for discovery responses to April 24, 2026, May 15, 2026, and May 29, 2026. However, Defendants' counsel declared that discovery responses have not been received. The instant motions to compel responses were filed on June 12, 2026. Plaintiffs did not file an opposition to Defendants' motion to compel responses. Therefore, Defendants are entitled to an order compelling Plaintiffs to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Request for Admissions, Set One, was served by email to Plaintiffs on April 2, 2026. Plaintiffs failed to serve responses. No opposition has been filed demonstrating any excusable reason for Plaintiff's failure to respond to the requests for admission. As such, the court intends to grant the motion unless responses to the requests are served before the hearing on the motion.

Sanctions

Generally, conduct subject to sanctions include failing to respond or submit to an authorized method of discovery. (Code Civ. Proc., § 2023.010, subd. (d).) If a party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (*Id.*, §§ 2030.290, subd. (c), 2031.300, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) The court must impose a monetary sanction against the party or attorney, or both, whose failure to respond necessitated the motion to deem matters admitted. (*Id.*, § 2033.280, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

The notice for the motion to compel and the motion to have requests for admissions deemed admitted each include a request for sanctions for \$810.00, and a

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/14/26
(Judge's initials) (Date)